

# ENDURING POWER OF ATTORNEY

## Part 1 General

This power of attorney is made on the \_\_\_\_\_ day of \_\_\_\_\_ 20\_\_\_\_

by \_\_\_\_\_ (Donor's full name)

of \_\_\_\_\_ (Donor's Address)

I appoint \_\_\_\_\_ (Attorney's name)

of \_\_\_\_\_ (Attorney's Street address)

to be my attorney. My attorney may exercise the authority conferred on my attorney by Section 6 of the *Powers of Attorney and Agency Act 1984* ("the Act") to do on my behalf anything I may lawfully authorise an attorney to do. My attorney's authority is subject to any additional details specified in Part 2 of this document.

1. I declare that my attorney:

- a. is at least 18 years of age;
- b. is not my paid carer or health provider; and
- c. is not bankrupt nor taking advantage of the laws of bankruptcy as a debtor under the Bankruptcy Act (1966) (*Cwth*) or similar law.

2. I give this power of attorney with the intention that it will:

- a. ☐ continue to be effective notwithstanding my legal incapacity after its execution; OR
- b. ☐ be effective in the event of my legal incapacity.

If no option is selected or the options chosen are unclear or inconsistent, I direct that the instruction shall be interpreted as if I had chosen 2(b).

3. This power of attorney operates (choose one):

- a. ☐ immediately
- b. ☐ when my attorney accepts the appointment
- c. ☐ on and from \_\_\_\_\_ (start date) up to and including \_\_\_\_\_ (end date)
- d. ☐ under the following circumstance(s): \_\_\_\_\_

e. ☐ when my attorney considers that I need assistance managing my affairs

f. ☐ other: \_\_\_\_\_

If no option is selected or the options chosen are unclear or inconsistent, I direct that the instruction shall be interpreted as if I had chosen 3(b).

## ***Part 2: Additional Powers and Restrictions***

I ☐ do / ☐ do not authorise my attorney to give reasonable gifts.

I ☐ do / ☐ do not authorise my attorney to confer benefits on the attorney or a charity associated with the attorney.

I ☐ do / ☐ do not authorise my attorney to confer benefits on the following to meet their reasonable living and medical expenses:

\_\_\_\_\_ (Name)

of \_\_\_\_\_ (Street address)

and

\_\_\_\_\_ (Name)

of \_\_\_\_\_ (Street address)

This power of attorney is subject to:

☐ no additional conditions and limitations.

☐ the following additional conditions and limitations : \_\_\_\_\_

\_\_\_\_\_

Signed, sealed and delivered by the donor

\_\_\_\_\_ (Donor's signature)

## ***Certificate Under Section 6 of the Powers of Attorney Act 1984***

I, \_\_\_\_\_ (*Name of Authorised Witness*)

of \_\_\_\_\_ (*Street address*)

certify the following:

1. I am a person authorised by law to take affidavits;
2. I witnessed the signing of this power of attorney by the donor in my presence;
3. The donor appeared to understand the effect of this power of attorney and to have the capacity to make this enduring document;
4. I am not an attorney under this power of attorney;

Dated \_\_\_\_\_

\_\_\_\_\_ (*Witness's signature*)

## ***Acceptance by Attorney***

**Note:** *This acceptance must be signed before the attorney can use the power of attorney.*

I, \_\_\_\_\_, (*Attorney's name*)

of \_\_\_\_\_ (*Attorney's address*)

the person appointed to be the donee of the power of attorney created by the instrument on which this acceptance is endorsed (or to which this acceptance is annexed) accept the appointment and acknowledge:

1. that the power of attorney is an enduring power of attorney and as such may be exercised by me notwithstanding any subsequent legal incapacity of the donor (or in the event of any subsequent legal incapacity of the donor); and
2. that I will, by accepting this power of attorney, be subject to the requirements of the Powers of Attorney and Agency Act 1984.

Signed: \_\_\_\_\_ (*Donee of the Power of Attorney*)

Dated: \_\_\_\_\_